

POPIA Compliance Basics

7 steps • 12 min read • Available from the Launchpad plan

If your business collects a name, an email address, or a phone number, POPIA already applies to you. This playbook sets up the minimum practical controls, consent language, and paperwork most early-stage South African businesses need — without the compliance theatre.

WHY IT MATTERS

- The Protection of Personal Information Act (POPIA) applies to almost every business that processes customer or employee data, regardless of size.
- The Information Regulator can issue administrative fines and, in serious cases, referral for criminal liability for non-compliance.
- Enterprise customers and investors increasingly require a POPIA-compliant privacy policy and data processing agreements before they will sign with you.

Step-by-step

1

Map what personal information you actually collect

List every place you collect personal information: sign-up forms, payment processing, support tickets, marketing lists, and employee records.

2

Identify your lawful basis for processing

For each category, confirm whether you rely on consent, contractual necessity, or legitimate interest — POPIA requires a valid basis for every use of personal information.

3

Appoint an Information Officer

Every responsible party must designate an Information Officer (often the founder or COO at an early-stage company) and register them with the Information Regulator.

4

Run the Privacy Policy (POPIA Compliant) wizard

Generate a plain-language privacy policy covering what you collect, why, how long you keep it, and how people can exercise their rights of access and correction.

5

Put Data Processing Agreements in place with vendors

Anywhere a third party (payroll provider, email platform, hosting provider) processes personal information on your behalf, run the Data Processing Agreement wizard to bind them to POPIA-equivalent obligations.

6

Set consent and cookie language on your website

Make sure marketing consent is opt-in, not opt-out, and that your website discloses cookies and tracking clearly.

7

Log the compliance pack in your Company Snapshot

Store the signed privacy policy, DPAs, and Information Officer registration together so you can produce them quickly if a customer, investor, or the Regulator asks.

Quick checklist

- Personal information sources mapped
- Lawful basis identified for each type of processing
- Information Officer appointed and registered
- POPIA-compliant privacy policy published
- Data Processing Agreements signed with key vendors
- Website consent and cookie disclosures in place
- Compliance pack filed in the Company Snapshot

RELATED WIZARDS — JUMP STRAIGHT IN

→ **Privacy Policy (POPIA Compliant)** → **Data Processing Agreement**

This playbook is general guidance for South African startups and SMEs and is not a substitute for advice on your specific circumstances. Run the linked wizards on The StartUp Legal platform to generate, negotiate, and e-sign the actual documents — each completed run produces a receiver-grade document, a full evidence pack, and an update to your Company Snapshot.